

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008587

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PRESERVE TAM
VALLEY

vs.

DEFENDANT: MARIN COUNTY, ET AL

NATURE OF PROCEEDINGS: REVIEW HEARING

RULING

Appearances required.

Parties should be prepared to focus their arguments on the term “Scrap and Dismantling Yards” and address the standard of review for an administrative agency’s interpretations of law. To the extent either party argues that the court should consider *Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 7-8, which was not referenced in Respondent’s brief, the parties shall address the factors set forth under that case as they apply to the meaning of this term.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008683

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: GREGORY BORCHARDT

vs.

DEFENDANT: THE WINDCHIME
GROUP LLC, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL ARBITRATION

RULING

The Petition to Compel Arbitration by Defendants The Windchime Group, LLC, Integral Senior Living, LLC DBA Windchime of Marin, Windchime of Marin Management, LP, Integral SL Management, LLC, Steven Dirk Mellema, and Lauren Cottman (“Defendants”) is DENIED.

BACKGROUND

Linda Eurman was an elder adult with Alzheimer’s. (Compl., ¶¶ 1, 13.) On or around August 25, 2025, Ms. Eurman was admitted to Windchime of Marin (the “Facility”), a licensed residential care facility for the elderly in Kentfield, California. (*Id.*, ¶¶ 2, 32-33.) The Facility is owned, operated, managed, administered, and controlled by Defendants. (*Id.*, ¶ 4.)

Plaintiff alleges that despite knowledge of Ms. Eurman’s fall risk, Defendants never implemented any fall prevention precautions for her. (*Id.*, ¶ 46.) Plaintiff alleges this was a result of Defendants deliberately understaffing the Facility to decrease costs and increase their revenues. (*Id.*, ¶¶ 15, 22, 24, 43-44.) As a result, Ms. Eurman suffered numerous falls and after each fall Defendants failed to investigate, assess her, update her care plan, or implement any fall prevention interventions. (*Id.*, ¶¶ 48, 52.) On the morning of September 11, 2025, Ms. Eurman suffered a serious fall at the Facility that caused a traumatic brain injury. (*Id.*, ¶¶ 51, 53.) Thereafter, Ms. Eurman’s condition deteriorated rapidly, and she died on December 16, 2025. (*Id.*, ¶¶ 2, 54.)

On December 30, 2025, plaintiffs Gregory Borchardt, as Successor-in-Interest of Linda Eurman, as Executor of the Linda Eurman Revocable Trust, as Personal Representative of the Linda Eurman Revocable Trust and as Trustee of the Linda Eurman Revocable Trust and the Estate of Linda Eurman (“Plaintiffs”), filed this lawsuit. (Compl., ¶ 3.) Plaintiffs assert claims for